

24STCV08247 24STCV08247

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-10

Motion: PLAINTIFFS' MOTION FOR SUMMARY ADJUDICATION

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Case Number: 24STCV08247 Hearing Date: July 10, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

EMILEE

CROCKER, EMILY ANDERSON, JORGE BONILLA, ANGELA GREGORY, GRANT GODDARD,
SUMALAI NGOWAN, MAXWELL NABI, GERARD ROSS, and CHRISTIAN ROSS,

Plaintiffs,

vs.

CARLO, INC., and DOES 1 through 10,

Defendants.

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CASE

NO.: 24STCV08247

[TENTATIVE] ORDER RE:

PLAINTIFFS' MOTION FOR SUMMARY
ADJUDICATION

Dept. 733

8:30 a.m.

July 10, 2026

I.

INTRODUCTION

On April 2, 2024,

Plaintiffs Emilee Crocker; Emily Anderson; Jorge Bonilla; Angela Gregory; Grant Goddard; Sumalai Ngowan; Maxwell Nabi; Gerard Ross and Christian Ross ("Plaintiffs") filed this action against Defendant Carlo, Inc. ("Defendant"), alleging causes of action for (1) Violations of the Investigative Consumer Reporting Agencies Act ("ICRAA"), Civ. Code §§ 1786, et seq., (2) Invasion of Privacy, and (3) Declaratory Relief.

The Complaint

alleges the following. The ICRAA imposes important procedural safeguards designed to protect persons like the Plaintiffs, who applied to be tenants and residents at The Ridgeview Apartments, The Esplanade Apartments, The Ritz

Apartments, The Excelsior Apartments and The Parkview Apartments, which are managed and operated by Defendant Carlo, Inc. Plaintiffs allege Defendants violated the ICRAA because Defendant did not provide a means by which the Plaintiffs could indicate that he or she wished to receive a copy of any investigative consumer report prepared in connection with their housing application. Defendant also did not agree to provide a copy of any of the reports prepared about the Plaintiffs. Plaintiffs are seeking damages, including actual damages, statutory damages and punitive damages, and Plaintiffs are demanding declaratory relief and an injunction.

On July 31, 2025,
the Court denied Plaintiffs' motion for summary adjudication ("MSA Order").

On June 24, 2026,
the Court granted Plaintiffs' motion for reconsideration of Plaintiff's motion for summary adjudication. The Court ordered Defendant to file their request for judicial notice no later than June 29, 2026, and Plaintiffs to file any opposition no later than July 6, 2026.

On June 29, 2026,
both Plaintiffs and Defendant filed their respective requests for judicial notice.

II.

LEGAL STANDARD

In reviewing a motion for summary judgment, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages . . . or that one or more defendants either owed

or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c, subd. (f)(2).)

“[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) A moving defendant need not conclusively negate an element of plaintiff’s cause of action. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.)

To meet this burden of showing a cause of action cannot be established, a defendant must show not only “that the plaintiff does not possess needed evidence” but also that “the plaintiff cannot reasonably obtain needed evidence.” (Aguilar, supra, 25 Cal.4th at p. 854.) It is insufficient for the defendant to merely point out the absence of evidence. (Gaggero v. Yura (2003) 108 Cal.App.4th 884, 891.) The defendant “must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.” (Ibid.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (Aguilar, supra, 25 Cal.4th at p. 855.)

“Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, “shall set forth the specific facts showing that a triable issue of material fact exists as to the

cause of action.” (Ibid.) “If the plaintiff cannot do so, summary judgment should be granted.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

The court must “liberally construe the evidence in support of the party opposing summary judgment and resolve all doubts concerning the evidence in favor of that party,” including “all inferences reasonably drawn therefrom.” (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1037; Aguilar, supra, 25 Cal.4th at pp. 844-45.) “On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839.)

Further, “the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. [Citation.]” (Id. at p. 840; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

III.

JUDICIAL NOTICE

Defendant requests
for the Court to take judicial notice of the following:

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Defendant’s

Opposition to Motion for Reconsideration of Ruling on Plaintiffs’ Motion
for Summary Adjudication, filed on June 10, 2026

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The Declaration
of John P. Cogger, Esq., in Support of Defendant Carlo, Inc.'s Opposition to
Motion for Reconsideration of Ruling on Plaintiffs' Motion for Summary
Adjudication, filed on June 10, 2026

-

Motion for Class Certification filed on May 8, 2026, in
connection with Jessie Pauli, et al. v. Carlo, Inc. Los Angeles Superior Court
(Case No. 24STCV10917)

The Court grants Defendant's request.

Plaintiffs request for the Court to
take judicial notice of the following:

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Order on May 5, 2025, granting Plaintiffs' Motion for
Summary Adjudication for violations of the Investigative Consumer Reporting
Agencies Act ("ICRAA"), California Civil Code sections 1786, et seq., against
Defendant in Estefany Gutierrez, et al. v. Carlo, Inc., Los Angeles
Superior Court case number 24STCV14466

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Judgment against Defendant on June 12, 2026, in Estefany
Gutierrez, et al. v. Carlo, Inc., Los Angeles Superior Court case number
24STCV14466, based on violations of the Investigative Consumer Reporting
Agencies Act ("ICRAA")

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Defendant's Acceptance of Statutory Offers to
Compromise "based on Defendant's violation of the ICRAA," in Jessie Pauli, et
al. v. Carlo, Inc., Los Angeles Superior Court case number 24STCV10917, dated
June 23, 2026

The Court grants Plaintiffs' request.

IV.

DISCUSSION

As stated above, on July 31, 2025, the Court rendered the MSA Order, which denied

Plaintiffs' motion for summary adjudication.

Plaintiffs moved for summary adjudication as to the first cause of action alleged in the complaint because Defendant violated the ICRAA by (1) obtaining investigative consumer reports about each, without complying with statutory obligations; (2) procuring investigative consumer reports about them without providing any written notification that an investigative consumer report would be made regarding his or her character, general reputation, personal characteristics, and mode of living, (3) by procuring investigative consumer reports about them without providing any written notification containing the name and address of the investigative consumer reporting agency that will prepare the report; (4) by procuring investigative consumer reports about them without providing any written notification containing a summary of the provisions of Civil Code section 1786.22, (5) by procuring investigative consumer reports about them without providing a means by which each may have indicated on a written form, by means of a box to check, that he or she wished to receive a copy of any report that was prepared about him or her; and (6) by procuring investigative consumer reports about them without providing copies of the reports to the subject thereof.

The Court denied the motion on the ground that the language of the ICRAA required Plaintiffs to demonstrate actual injury in order to establish their standing. (See MSA Order.)

Under the ICRAA, "[a]n investigative consumer reporting agency or user of information that fails to comply with any requirement under this title with respect to an investigative consumer report is liable to the consumer who is the subject of the report in an amount equal to the sum of all the following: [] (1) Any actual damages sustained by the consumer as a result of the failure or, except in the case of class actions, ten thousand dollars (\$10,000), whichever sum is greater... ." (Civ. Code, § 1786.50(a).) The Court analogized the instant case to *Limon v. Circle K Stores Inc.* (2022) 84 Cal.App.5th 671, 699 ("Limon"), and found that because section 1786.50(a) uses the term "actual damages," rather than "penalties," a showing of mere statutory violations is insufficient. (*Ibid.*)

The Court also concluded that the ICRAA damages provision does not “possess such penalizing language nor possesses ‘statutory’ damages in addition to the actual damages set forth in section 1786.50(a)(1).” (Ibid.)

Because the Court interpreted the statute to require a showing of actual injury, the Court held that there existed an issue of fact as to whether Plaintiffs properly demonstrated actual damages. The Court denied Plaintiffs’ motion.

Since then, the Court of Appeal has directly spoken on the issue. (Yeh v. Barrington Pac., LLC (2026) 117 Cal.App.5th 1303 (“Yeh”).) There, the trial court granted the defendant’s motion for summary judgment on the ground that the ICRAA did not create standing through solely a statutory penalty. (Id. at p. 1311.) But the Yeh Court expressly disagreed. (Id. at p. 1317.)

In interpreting the ICRAA damages provision, the Court concluded that “that the \$10,000 amount operates as an alternative to actual damages and provides standing for plaintiffs to pursue their claims. Whether characterized as statutory damages or a statutory penalty, the \$10,000 minimum recovery for an ICRAA violation is punitive and untethered to actual injury.” (Ibid.) The Court declined to follow Limon and explicitly held that “plaintiffs need not prove actual harm to bring an ICRAA claim; a violation of their informational rights alone entitles them to the statutory penalty and provides standing to pursue an action.” (Id. at p. 1323.)

After the Court granted Plaintiffs’ motion for reconsideration of their motion for summary adjudication, the Court now revisits Plaintiffs’ motion for summary adjudication filed on April 29, 2025 and reconsiders its accompanying order denying the motion.

As the Court stated previously in its MSA Order, Plaintiffs’ position is rather

straightforward — there is no triable issue of fact that Defendant simply failed to comply with the requirements delineated in Civil Code section 1786.16.

As

previously addressed, Plaintiffs provided that Defendant requested and obtained investigative consumer reports about each of Plaintiffs following the submission of their rental applications for dwelling units at The Esplanade Apartments, The Ritz Apartments, The ParkView 2 Apartments, The Ridgeview Apartments and The Excelsior Apartments located at Lake Balboa, Studio City and Northridge, California. (See Murphy Decl., ¶¶ 2-19, 22, Ex. 2 [RentGrow Report on Crocker], Ex 4. [RentGrow Report on Anderson], Ex. 6 [RentGrow Report on Bonilla], Ex. 8 [RentGrow Report on Gregory], Ex. 10 [RentGrow Report on Goddard]; Ex. 12 [RentGrow Report on Ngowan], Ex. 14 [RentGrow Report on Nabi], Ex. 16 [RentGrow Report on G.Ross], Ex. 18 [RentGrow Report on C.Ross].)

Plaintiffs then provided that Defendant did not give them written notice identifying the reporting agency or that an investigative consumer report would be made regarding his or her character, general reputation, personal characteristics, and mode of living, as required by Civil Code § 1786.16(a)(3). Plaintiffs also provided that Defendant did not give them written notice containing a summary of the provisions of Civil Code section 1786.22, as required by Civil Code § 1786.16(a)(3). (UMF 16-24, Crocker Decl.,

¶ 4 [“[Defendant] never provided me with written notification that an investigative consumer report would be made regarding my character, general reputation, personal characteristics, and mode of living”], Anderson Decl., ¶ 4 [same], Bonilla Decl., ¶ 4 [same], Gregory Decl., ¶ 4 [same], Goddard Decl., ¶ 4 [same], Ngowan Decl., ¶ 4 [same], Nabi Decl., ¶ 4 [same], G.Ross Decl., ¶ 4 [same], C.Ross Decl., ¶ 4 [same]; UMF 34-51, Crocker Decl., ¶¶ 5-6 [“[Defendant] never provided me with written notification identifying RentGrow as an investigative consumer reporting agency preparing a report about me, nor any other writing containing RentGrow’s name or address [and] never provided me with any written notification containing a summary of the provisions of California Civil Code section 1786.22”], Anderson Decl., ¶¶ 5-6 [same], Bonilla Decl., ¶¶ 5-6 [same], Gregory Decl., ¶¶ 5-6 [same], Goddard Decl., ¶¶ 5-6 [same], Ngowan Decl., ¶¶ 5-6 [same], Nabi Decl., ¶¶ 5-6 [same], G.Ross Decl., ¶¶ 5-6 [same], C.Ross Decl., ¶¶ 5-6 [same].)

Plaintiffs then provided that Defendant did not give Plaintiffs a check box form allowing them to request a copy of the reports, as required by Civil Code section 1786.16(b)(1). (UMF 52-60, Crocker Decl., ¶ 7 [“[Defendant] never provided me with any form that had a box to check if I wanted to receive a copy of any investigative consumer report that RentGrow

prepared about me.”], Anderson Decl., ¶ 7 [same], Bonilla Decl., ¶ 7 [same], Gregory Decl., ¶ 7 [same], Goddard Decl., ¶ 7 [same], Ngowan Decl., ¶ 7 [same], Nabi Decl., ¶ 7 [same], G.Ross Decl., ¶ 7 [same], C.Ross Decl., ¶ 7 [same].)

Plaintiffs then

provided that Defendant procured investigative consumer reports about them without providing copies of the reports to the subject thereof. (UMF 256-306; Crocker Decl., ¶¶ 9-10 [“Carlo never provided me with a copy of the investigative report it received about me from RentGrow and I did not receive any report from RentGrow. Neither before nor after I submitted my Application was I told by Carlo that it had sought or obtained any investigative consumer report about me from RentGrow.”], Anderson Decl., ¶¶ 9-10 [same], Bonilla Decl., ¶¶ 9-10 [same], Gregory Decl., ¶¶ 9-10 [same], Goddard Decl., ¶¶ 9-10 [same], Ngowan Decl., ¶¶ 9-10 [same], Nabi Decl., ¶¶ 9-10 [same], G.Ross Decl., ¶¶ 9-10 [same], C.Ross Decl., ¶¶ 9-10 [same].)

Thus, Plaintiffs

have met their burden in demonstrating that no triable issue of fact exists that Defendant violated the ICRAA when it obtained investigative consumer reports about Plaintiffs. And as Yeh provides, Plaintiffs are able to pursue their ICRAA claim based solely on recovery of statutory damages, without showing actual injury. (Yeh, *supra*, 117 Cal.App.5th at p. 1317.) By solely demonstrating that no issue of fact exists regarding whether Defendant complied with the ICRAA, Plaintiffs have met their initial summary adjudication burden, as Yeh has made it clear that Plaintiffs are free to pursue the \$10,000.00 statutory penalty under Civil Code section 1786.50(a)(1). (Id. at pp. 1318-1319 [“The \$10,000 therefore reflects a fixed statutory remedy rather than a compensatory recovery and does not require proof of any causal nexus between the violation and an injury. Instead, the \$10,000 serves to motivate compliance with ICRAA and deter future violations.”].)

The burden shifts.

a.

Standing

Defendant’s

opposition to the original motion for summary adjudication primarily addressed the issue of standing – specifically arguing the assertion that actual damages

must be shown in order to sustain a claim for violation of the ICRAA. As explained above, the Yeh Court disagreed and found that a plaintiff has standing to pursue an ICRAA claim through the sole finding of a statutory violation rather than need to demonstrate actual injury. (Yeh, supra, 117 Cal.App.5th at pp. 1318-1319.) Thus, Plaintiffs here need not show actual injury in order to pursue their ICRAA claim – a showing that Defendant violated their informational rights under the ICRAA is enough.

b. Defendant is Subject to the ICRAA

Next, Defendant argues that it was not required to comply with the ICRAA because the

ICRAA does not apply to those that merely “obtained” an “investigative consumer report[.]” Rather, according to Defendant, the ICRAA applies only to those “procuring or causing the request” for an “investigative consumer report is sought in connection with the hiring of a dwelling unit.” (See Civ. Code §§ 1786.16(a)(3)-(5), 1786.16(b)(1).) Defendant contends that it was RentGrow and/or Yardi Systems, Inc. (“Yardi”) who administered the rental application screening process. (See Defendant’s Material Facts (“DUMF”) 3-7; Danielyan Decl., ¶¶ 3-5.) The Court disagrees.

Defendant provides no legal authority to support its assertion that there is a “critical difference” between “obtaining” an “investigative consumer report” versus “procuring or causing the request” for an “investigative consumer report.” Here, Plaintiffs have provided evidence that Plaintiffs submitted to Defendant their respective rental applications. (See Plaintiffs’ Material Facts (“PUMF”) 7-15; Murphy Decl., ¶ 22, Ex. 1 [Crocker Application]; Ex. 3 [Anderson Application]; Ex. 5 [Bonilla Application]; Ex. 7 [Gregory Application]; Ex. 9 [Goddard Application]; Ex. 11 [Ngowan Application]; Ex. 13 [Nabi Application]; Ex. 15 [G.Ross Application]; Ex. 17 [C.Ross Application].) Plaintiffs then provide evidence that Defendant requested and obtained investigative consumer reports about each of Plaintiffs following the submission of their rental applications. (See Murphy Decl., ¶¶ 2-19, 22, Ex. 2 [RentGrow Report on Crocker], Ex. 4 [RentGrow Report on Anderson], Ex. 6 [RentGrow Report on Bonilla], Ex. 8 [RentGrow Report on Gregory], Ex. 10 [RentGrow Report on Goddard]; Ex. 12 [RentGrow Report on Ngowan], Ex. 14 [RentGrow Report on Nabi], Ex. 16 [RentGrow Report on G.Ross], Ex. 18 [RentGrow

Report on C.Ross].) Defendant fails to address the evidence that it, through the screening platform RentGrow, caused investigative consumer reports to be prepared about each Plaintiff as part of the rental application process. (See DUMF 15.)

Defendant has not proffered controverting evidence that it did not “procure or cause [the reports] to be prepared.”

c.

ICRAA Violation

Here, Defendant has failed to meet its burden in demonstrating that an issue of fact exists

regarding whether there was an ICRAA violation.

Defendant

argues that it notified all applicants that they would be screened, thereby complying with Civil Code section 1786.16. While Defendant states that it does not have complete copies of the rental applications Plaintiffs submitted, Defendant provides that prospective tenants, including Plaintiffs, signed “General Rental Occupancy Criteria Guidelines,” which provided that “[t]his community uses an independent credit report agency to obtain [a] credit report,” and that the “credit report contains information about [the applicant] and [their] credit experiences, including but not limited to such items as . . . bill-payment history, the number and types of accounts that . . . had late payments, collection actions, outstanding debt and the age of . . . accounts.” Additionally, the Guidelines indicated that “[t]he credit reporting agency may also obtain, review and evaluate other relevant criteria about [the applicant], including but not limited to information regarding any judgments in an unlawful detainer action . . .” (See Danielyan Decl., ¶ 7, Ex. 1 [“General Rental Occupancy Criteria Guidelines” signed by Plaintiffs].)

However,

this evidence does not show that Defendant fully complied with the ICRAA. Defendant does not provide evidence or a triable issue about notifying Plaintiffs in writing, within three days, that an investigative consumer report would be made “regarding the consumer’s character, general reputation, personal

characteristics, and mode of living,” with “the name and address of the investigative consumer reporting agency that will prepare the report and a summary of the provisions of Section 1786.22.” (Civ. Code, § 1786.16(a)(3).)

Lastly,

Defendant argues that Plaintiffs failed to put forth the copies of the actual rental applications and instead provide a “summary of applicant data.” Not only has Defendant failed to properly explain how this contention is legally significant in the ICRAA analysis, but Defendant has also failed to mention that the “summary of applicant data” that Plaintiffs provided are the applications that were produced by Defendant itself in discovery. (See Murphy Decl., ¶¶ 2, 4, 6, 8, 10, 12, 14, 16, 18; see also Opp. To Motion for Reconsideration at p. 8 fn.1 [“Carlo does not possess copies of Plaintiffs’ actual rental applications”].) Same with the investigative consumer reports that Plaintiffs have proffered, which were produced by Defendant in discovery. (Id. at ¶¶ 3, 5, 7, 9, 11, 13, 15, 17, 19.)

V.

CONCLUSION

Based on the foregoing, Plaintiffs’ motion for summary adjudication as to the first cause

of action is GRANTED.

When the final judgment is entered in this action, it will include judgment in favor of

Plaintiffs on the first cause of action in the total amount of \$90,000 (\$10,000 statutory damages for each Plaintiff). (See Civ. Code, § 1786.50(a).)

Dated this 10th
day of July 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court